

STATE OF NEW YORK

9244--A

Cal. No. 471

2025-2026 Regular Sessions

IN ASSEMBLY

November 7, 2025

Introduced by M. of A. HEVESI, MEEKS, HOOKS -- read once and referred to the Committee on Children and Families -- recommitted to the Committee on Children and Families in accordance with Assembly Rule 3, sec. 2 -- reported and referred to the Committee on Codes -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the social services law, in relation to allowing persons to request a second hearing to seal child protective services records

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph (ii) of paragraph (c) of subdivision 8 of
2 section 422 of the social services law is amended by adding a new undesignated paragraph to read as follows:

3
4 Provided, however, the subject shall be entitled to request a second
5 hearing to request the sealing of such subject's case no sooner than two
6 years after the date of the first hearing, if such subject demonstrates
7 good cause to the office of children and family services, and there is
8 no evidence the subject has committed maltreatment of a child in the
9 preceding two years. Good cause shall include, but not be limited to,
10 completing services such as drug or alcohol treatment programs, parent-
11 ing skills classes, or anger management programs; regular participation
12 in mental health services; or participation in any service, program,
13 therapy, activity, or intervention to address the previously entered
14 substantiated finding or findings. The office of children and family
15 services shall notify the subject of the outcome of their request for a
16 second hearing in writing by mail within thirty days of receipt of the
17 subject's request. The written notice shall include a determination of
18 whether the office of children and family services found good cause for
19 a second hearing and the rationale for the decision to grant or deny the
20 request. If the office of children and family services finds good cause
21 and grants the subject's request for a second hearing, the hearing shall

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 be scheduled within ninety days of such determination. If the subject is
2 denied a second hearing request based on a finding the subject has not
3 shown good cause, the subject shall be entitled to request a subsequent
4 hearing.
5 § 2. This act shall take effect immediately.